

23CHCV02028 23CHCV02028

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 23CHCV02028 Hearing Date: July 9, 2026 Dept: F47

Dept. F47

Date: 7/9/26

Case #23CHCV02028

MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on 2/26/26.

MOVING ATTORNEY: Joshua R. Kohanbash

CLIENT: Plaintiff Celedonio Solorzano Arroyo

RELIEF REQUESTED: An order relieving Joshua R.

Kohanbash as counsel for Plaintiff Celedonio Solorzano Arroyo in this action.

RULING: The motion is denied without prejudice.

On 2/26/26, attorney Joshua R. Kohanbash filed the instant motion to be relieved as counsel for Plaintiff Celedonio Solorzano Arroyo in this action due to a breakdown in the attorney-client relationship, including loss of communication with the client.

With regard to service of the motion, CRC 3.1362(d) provides:

The notice of motion and motion,
the declaration, and the proposed order must be served on the client and on all
other parties who have appeared in the case. The notice may be by personal
service, electronic service, or mail.

(1) If
the notice is served on the client by mail under Code
of Civil Procedure section 1013, it must be accompanied by a declaration
stating facts showing that either:

(A)
The service address is the current residence or business address of the client;
or

(B)
The service address is the last known residence or business address of the
client and the attorney has been unable to locate a more current address after
making reasonable efforts to do so within 30 days before the filing of the
motion to be relieved.

(2) If
the notice is served on the client by electronic service under Code
of Civil Procedure section 1010.6 and rule 2.251, it must be
accompanied by a declaration stating that the electronic service address is the
client's current electronic service address.

As used in this rule, "current"
means that the address was confirmed within 30 days before the filing of the
motion to be relieved. Merely demonstrating that the notice was sent to the
client's last known address and was not returned or
no electronic delivery failure message was received is not,
by itself, sufficient to demonstrate that the address is current. If the
service is by mail, Code
of Civil Procedure section 1011(b) applies.

The proof of
service for the motion indicates that the motion papers were mailed to the
client on 2/24/26 via United States mail.

No other party has appeared in the action. The declaration filed in support of the motion
indicates that the client was served by mail with the motion papers at the

client's last known address. (See Declaration, No.3.a.(2)). However, there is no indication that the client's address was confirmed within the 30 days before the motion was filed. (Id., No.3.b.(1)); CRC 3.1362(d)(2). Nor does the declaration indicate that the attorney has been unable to confirm that the address is current or locate a more current address after making efforts to do so. (Id., No.3.b.(2)); CRC 3.1362(d)(1)(B).